

RECONVEYANCE DEED / DEED OF RELEASE
(Mortgage Discharge)

Document No. 14502/2012
Registered at Office of the Sub-Registrar,
SRO V-A (Hauz Khas), New Delhi on 8th November 2012

THIS RECONVEYANCE DEED / DEED OF RELEASE is made and executed on this 5th day of November, Two Thousand and Twelve (05-11-2012) at New Delhi.

B E T W E E N

AXIS BANK, a banking company incorporated under the Companies Act, 1956, having its Head Office at 7, Bhikaji Cama Place, New Delhi - 110066, and acting through its South Extension Branch, Ring Road, South Extension Part-I, New Delhi - 110049, represented herein by its authorized officer MR. SURESH BAHADUR, Chief Manager, duly authorized vide Board Resolution dated 15th October 2012 (hereinafter referred to as the "RELEASOR" or the "BANK", which expression shall, unless repugnant to the context or meaning thereof, include its successors and assigns) of the FIRST PART;

AND

MR. VIKRAM SINGH CHAUHAN, son of Shri Harbhajan Singh Chauhan, aged about 42 years, Indian Inhabitant, residing at Flat No. 8, Fourth Floor, Plot No. 1A, Hauz Khas Enclave, New Delhi - 110016, PAN: BKCPC8834M (hereinafter referred to as the "RELEASEE" or the "BORROWER", which expression shall, unless repugnant to the context or meaning thereof, include his heirs, legal representatives, executors, administrators, successors and assigns) of the SECOND PART.

The Releasor and the Releasee are hereinafter individually referred to as the "Party" and collectively as the "Parties."

W H E R E A S

- A. The Releasee is the sole and absolute owner of ALL THAT residential flat being Flat No. 8, situated on the Fourth Floor of the building erected on Plot No. 1A, Hauz Khas Enclave, New Delhi - 110016, admeasuring approximately 1200 (One Thousand Two Hundred) square feet of super built-up area, more fully described in the Schedule of Property hereunder written (hereinafter referred to as the "Said Property" or the "Said Flat").
- B. The Releasee had acquired the Said Flat by virtue of a Sale Deed bearing Document No. 5847 of the year 2005, registered at the Office of the Sub-Registrar, SRO V-A (Hauz Khas), New Delhi.
- C. The Releasee had obtained a Home Improvement Loan of Rs. 35,00,000/- (Rupees Thirty-Five Lakhs Only) from the Releasor and had, as security for repayment of the said loan, executed a Mortgage Deed (Simple Mortgage) dated 10th August 2008, bearing Document

No. 9234 of the year 2008, registered at the Office of the Sub-Registrar, SRO V-A (Hauz Khas), New Delhi on 12th August 2008 (hereinafter referred to as the "Original Mortgage Deed"), whereby the Releasee had mortgaged the Said Property in favour of the Releasor by way of simple mortgage under Section 58(b) of the Transfer of Property Act, 1882.

D. The principal terms of the Original Mortgage Deed were:

- (i) Principal Loan Amount : Rs. 35,00,000/- (Rupees Thirty-Five Lakhs Only)
- (ii) Rate of Interest : 10.25% per annum (floating), linked to BPLR
- (iii) Loan Tenure : 180 months (15 years)
- (iv) EMI : Rs. 38,247/- per month

E. The Releasee has fully repaid and discharged the entire loan amount, together with all interest, charges, costs, and other monies due and payable to the Releasor under the Original Mortgage Deed and the terms of the loan sanction. The final payment was received by the Releasor on 22nd October 2012, and the Releasor's Loan Account No. 3125001500124987 (South Extension Branch) now stands at NIL balance. The Releasor has issued a No Dues Certificate / Loan Closure Certificate dated 25th October 2012 vide Reference No. AXIS/SE/NDC/2012/5891 confirming the full and final repayment and closure of the loan account.

F. Consequent upon the full and final repayment and discharge of the loan, the Releasor has agreed to release and reconvey the Mortgaged Property to the Releasee, to vacate the mortgage, and to return all original title documents deposited with the Bank, so that the Said Property stands freed, released and discharged from the mortgage created by the Original Mortgage Deed.

G. The Releasor has also initiated the process of filing satisfaction of charge with the Central Registry of Securitisation Asset Reconstruction and Security Interest of India (CERSAI) in respect of the mortgage registered thereunder.

NOW THIS RECONVEYANCE DEED / DEED OF RELEASE WITNESSETH
AS FOLLOWS:

1. RELEASE AND RECONVEYANCE

In consideration of the full and final repayment by the Releasee of all sums due and payable under the Original Mortgage Deed dated 10th August 2008, Document No. 9234/2008, and in pursuance of the agreement between the Parties, the Releasor HEREBY RELEASES, RECONVEYS, REASSIGNS AND DISCHARGES unto the Releasee the residential flat described in the Schedule of Property hereunder written, TO HAVE AND TO HOLD the same unto the Releasee absolutely and forever, freed and discharged from the simple mortgage created

by the Original Mortgage Deed and from all claims, rights, title, interest, lien and encumbrances of the Releasor thereunder.

2. VACATION OF MORTGAGE

The mortgage created by the Original Mortgage Deed bearing Document No. 9234 of the year 2008, registered at the Office of the Sub-Registrar, SRO V-A (Hauz Khas), New Delhi, is hereby declared to be fully satisfied, vacated, released and discharged with effect from 22nd October 2012, being the date of final repayment.

3. RETURN OF TITLE DOCUMENTS

The Releasor hereby confirms that all original title documents pertaining to the Said Property, which were deposited with the Bank as security, have been returned to the Releasee on this date, including but not limited to:

- (a) Original Sale Deed No. 5847/2005, registered at SRO V-A (Hauz Khas), New Delhi;
- (b) Original Allotment Letter;
- (c) Original Possession Letter;
- (d) Approved Building Plans and Completion/Occupancy Certificate;
- (e) Mutation records and property tax receipts;
- (f) Share Certificate of the Cooperative Group Housing Society / Residents Welfare Association (if applicable);
- (g) All other documents and papers pertaining to the Said Property that were in the custody of the Bank.

The Releasee acknowledges receipt of all the aforesaid original documents.

4. COVENANTS OF THE RELEASOR

The Releasor hereby covenants with the Releasee as follows:

4.1 NO FURTHER CLAIM: The Releasor hereby confirms that after the execution and registration of this Deed, the Releasor shall have no further right, title, interest, claim, demand, or lien of any nature whatsoever in, to, or over the Said Property or any part thereof by virtue of the Original Mortgage Deed or otherwise.

4.2 FULL DISCHARGE: The Releasor confirms and acknowledges that the Releasee has fully and finally repaid and discharged the entire loan amount together with all interest, costs, charges, penal interest (if any), and all other monies due under the Original Mortgage Deed and the terms of the loan sanction, and nothing further remains due or payable by the Releasee to the Releasor on account of the said loan or the Original Mortgage Deed.

4.3 NO IMPEDIMENT: The Releasor shall not do or cause to be done

anything that may in any manner impede, obstruct, or interfere with the free and absolute enjoyment and disposal of the Said Property by the Releasee, and the Releasor shall, at the request and cost of the Releasee, execute and register such further deeds and documents as may be reasonably required to give full effect to this release.

4.4 CERSAI SATISFACTION: The Releasor undertakes to file the satisfaction of charge / closure of security interest with CERSAI within thirty (30) days from the date of execution of this Deed, in accordance with the provisions of the SARFAESI Act, 2002 and the rules made thereunder.

4.5 INDEMNITY: The Releasor shall indemnify and hold harmless the Releasee against any loss, damage, cost, charge, or expense that the Releasee may suffer or incur on account of the Releasor's failure to comply with any of its obligations under this Deed, including the failure to file satisfaction of charge with CERSAI.

5. REPRESENTATIONS AND WARRANTIES OF THE RELEASOR

The Releasor hereby represents and warrants:

5.1 That the Releasor has full power and authority to execute this Deed and to release and reconvey the Said Property to the Releasee.

5.2 That the Original Mortgage Deed dated 10th August 2008, being Document No. 9234/2008, is the only mortgage or charge created by the Releasee in favour of the Releasor on the Said Property, and there exists no other mortgage, charge, lien, or encumbrance in favour of the Releasor on the Said Property.

5.3 That the Releasor has not assigned, transferred or securitised the loan or the security interest created under the Original Mortgage Deed to any third party.

5.4 That no proceedings under the SARFAESI Act, 2002 or otherwise are pending or contemplated by the Releasor against the Releasee or the Said Property.

6. STAMP DUTY AND REGISTRATION

This Reconveyance Deed / Deed of Release is executed on non-judicial stamp paper of appropriate value as prescribed under the Indian Stamp Act, 1899, as applicable in the National Capital Territory of Delhi. All stamp duty and registration charges in connection with this Deed shall be borne by the Releasee. This Deed shall be registered at the Office of the Sub-Registrar, SRO V-A (Hauz Khas), New Delhi, in accordance with Section 17 of the Registration Act, 1908.

7. MISCELLANEOUS

7.1 GOVERNING LAW: This Deed shall be governed by and construed in accordance with the laws of India. The courts at New Delhi shall have exclusive jurisdiction.

7.2 COUNTERPARTS: This Deed may be executed in two or more counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

7.3 EFFECTIVE DATE: This Deed shall be effective from the date of its registration at the Office of the Sub-Registrar.

SCHEDULE OF PROPERTY (The Released Property)

ALL THAT residential flat being FLAT NO. 8, situated on the FOURTH FLOOR of the building constructed on PLOT NO. 1A, in the layout / colony known as Hauz Khas Enclave, within the revenue estate of Village Hauz Khas, in the area of New Delhi Municipal Council (NDMC), New Delhi - 110016, admeasuring approximately 1200 (One Thousand Two Hundred) square feet of super built-up area (carpet area approximately 950 square feet), together with the right to use one covered car parking space in the stilt parking area and proportionate undivided share in the land and common areas of the building.

BOUNDARIES OF THE SAID FLAT:

On the North : Common passage and Flat No. 7 of the same floor
On the South : Outer wall facing the Hauz Khas District Park
On the East : Flat No. 9 of the same floor
On the West : Staircase, lift lobby and common area

BOUNDARIES OF THE PLOT:

On the North : 20 feet wide internal road of the Enclave
On the South : Plot No. 1B, Hauz Khas Enclave
On the East : Plot No. 2, Hauz Khas Enclave
On the West : 30 feet wide main approach road

IN WITNESS WHEREOF the Parties hereto have set and subscribed their respective hands and signatures on the day, month and year first hereinabove written.

RELEASOR:

For and on behalf of
AXIS BANK

Mr. Suresh Bahadur
Chief Manager
South Extension Branch, New Delhi
(Under Authority of Board Resolution
dated 15th October 2012)

RELEASEE:

Mr. Vikram Singh Chauhan
S/o Shri Harbhajan Singh Chauhan
PAN: BKCPC8834M

WITNESSES:

1. Name : _____
Address : _____
Signature: _____
2. Name : _____
Address : _____
Signature: _____

REGISTRATION ENDORSEMENT

Presented for registration at the Office of the Sub-Registrar, SRO V-A
(Hauz Khas), New Delhi on 8th November 2012 at 2:15 p.m. by Mr. Suresh
Bahadur on behalf of Axis Bank (Releasor) and Mr. Vikram
Singh Chauhan (Releasee), both identified by the undersigned.

Registered as Document No. 14502 in Book No. I, Volume No. _____,
Pages _____ to _____, for the year 2012.

Registration Fee Paid : Rs. _____
Stamp Duty Paid : Rs. _____

Sub-Registrar
SRO V-A (Hauz Khas)
New Delhi